

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ALFRED BASTONE,

Plaintiff,

-v-

THE CITY OF NEW YORK, a municipal entity,
New York City Police Department ("NYPD") Officer
JOHN MIGLIACCIO (Shield No. 25698); NYPD
Officer MICHAEL REALE (Shield No. 2181); NYPD
Officers JOHN and JANE DOES 1-5,
Defendants.

**FIRST AMENDED COMPLAINT
AND DEMAND FOR A JURY
TRIAL**

Index No. 801656/2022E

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Plaintiff Alfred Bastone, by his attorneys, Beldock Levine and Hoffman LLP, for his
Complaint, alleges as follows:

INTRODUCTION

1. This is a civil rights action brought to vindicate Plaintiff's rights under the
Constitution of the State of New York, the laws of the State of New York, and common law.

2. Plaintiff's rights were violated when police officers employed by Defendant THE
CITY OF NEW YORK, and acting under color of law, unconstitutionally and without any legal
basis used gratuitous, unlawful force against Plaintiff and arrested him without justification or
probable cause. By reason of Defendant's actions, through their employees, officers, and/or
agents, Plaintiff's rights were violated, and he sustained physical and emotional injuries.

3. Plaintiff seeks an award of compensatory and punitive damages in addition to
attorneys' fees.

PARTIES

4. Plaintiff, Alfred Bastone, is a resident of New York State, New York County. At
the time this claim arose, Mr. Bastone was a resident of Bronx County.

5. Defendant the City of New York (“City”) is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, Defendant City was the employer of the police officers whose conduct caused Plaintiff’s injuries.

6. Defendants New York City Police Department (“NYPD”) Officer JOHN MIGLIACCIO (Shield No. 25698), NYPD Officer MICHAEL REALE (Shield No. 2181), and NYPD Police Officer JOHN and JANE DOES 1 – 5 (collectively, the “Individual Defendants”) are and were at all times relevant herein, officers, employees, and agents of the NYPD, acting under color of law and in their individual capacity within the scope of employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York.

7. The true names and shield numbers of defendants P.O. John and Jane Does are not currently known to the Plaintiff. However, they are employees or agents of the NYPD. Accordingly, they are entitled to indemnification and representation in the action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield

numbers of said defendants become known to plaintiff and (b) that the Law Department should immediately begin preparing their defense in the action.

8. The Individual Defendants are being sued in their individual capacities.

9. The Individual Defendants' (defendants other than the City of New York) acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff's rights.

10. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

JURISDICTION

11. This action is brought pursuant to the Constitution of the State of New York and the laws of the State of New York.

12. Plaintiff has complied with the statutory requirements of GML § 50-e and attended an examination pursuant to GML § 50-h prior to commencing suit.

VENUE

13. Venue is properly laid in the Supreme Court of the State of New York, County of Bronx as the incident occurred in the County of Bronx.

JURY DEMAND

14. Plaintiff demands a trial by jury in this action on each and every one of his damage claims.

STATEMENT OF FACTS

15. On June 4, 2020 at approximately 7:30 p.m., at or around E. 136th Street and Brook Avenue in Bronx County, New York, Mr. Bastone was participating in a protest when members

of the New York Police Department (“NYPD”) kettled¹ him and other protesters, and proceeded to assault and arrest Mr. Bastone without justification or probable cause.

16. The Individual Defendant NYPD officers struck Mr. Bastone and otherwise used excessive force against him.

17. An NYPD officer removed a pair of safety prescription glasses from Mr. Bastone’s face and threw them. Though another officer picked up the glasses at Mr. Bastone’s request, the glasses were never returned to Mr. Bastone.

18. During the arrest, officers placed Mr. Bastone in zip ties/flex-cuffs incorrectly such that his forearm and wrist were cuffed, causing strain to his arm and back.

19. Mr. Bastone was transported to Queens Central Booking and spent hours in custody before he was finally issued a summons and released.

20. Defendant NYPD Officer MICHAEL REALE is listed on the summons as the reporting officer.

21. The summons issued to Mr. Bastone was dismissed before the court date.

22. While in custody, Mr. Bastone was not provided with medical attention for his head wound and other injuries.

23. As a result of the officers’ unlawful conduct, Mr. Bastone was deprived of his liberty and sustained physical, emotional, and other injuries.

24. The NYPD members whose actions caused injury to Mr. Bastone, including the Individual Defendants, were acting under color of law as agents, employees and/or officers of Defendant THE CITY OF NEW YORK.

FIRST CLAIM FOR RELIEF

¹ See Human Rights Watch, “Kettling” Protesters In The Bronx: Systemic Police Brutality And Its Costs In The United States (“HRW Report”), Sept. 2020, available at <https://www.hrw.org/report/2020/09/30/kettling-protesters-bronx/systemic-police-brutality-and-its-costs-united-states>.

ASSAULT AND BATTERY

25. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

26. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, did inflict assault and battery upon Plaintiff.

27. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

28. NYPD officers assaulted Plaintiff without cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

29. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SECOND CLAIM FOR RELIEF
FALSE ARREST AND FALSE IMPRISONMENT

30. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

31. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, caused to be falsely arrested or falsely arrested Plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so.

32. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, caused to be falsely detained and imprisoned or falsely detained and imprisoned Plaintiff without legal justification, without the consent of Plaintiff, and while Plaintiff was aware of such detention and imprisonment.

33. The acts and conduct of Defendant, through its employees, agents and/or officers were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

34. NYPD officers arrested, detained, and imprisoned Plaintiff without probable cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

35. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM FOR RELIEF
TRESPASS TO CHATTELS

36. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

37. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, physically and intentionally interfered with Plaintiff's personal property, including his safety prescription glasses, and with Plaintiff's right to possession thereof.

38. NYPD officers unlawfully interfered with Plaintiff's property and property rights while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

39. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FOURTH CLAIM FOR RELIEF
CONVERSION

40. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

41. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, intentionally and without authority, assumed and exercised control over Plaintiff's personal property and interfered with Plaintiff's right to possession thereof, including by removing Plaintiff's safety prescription glasses and never returning them to him.

42. NYPD officers unlawfully interfered with Plaintiff's property and property rights while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

43. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM FOR RELIEF
INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS

44. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

45. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

46. NYPD officers acted with extreme and outrageous conduct while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

47. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

SIXTH CLAIM FOR RELIEF
NEGLIGENCE

48. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

49. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, violated its duty of care when it assumed custody of Plaintiff and negligently caused injuries, emotional distress and damage to Plaintiff. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

50. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SEVENTH CLAIM FOR RELIEF
NEGLIGENT HIRING, SCREENING, RETENTION

51. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

52. Defendant THE CITY OF NEW YORK negligently hired, screened, and retained the NYPD officers who engaged in the conduct underlying Plaintiff's claims. The acts and conduct of Defendant in negligently hiring, screening, and retaining its police officers were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

53. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

EIGHTH CLAIM FOR RELIEF
NEGLIGENT SUPERVISION AND TRAINING

54. Defendant CITY OF NEW YORK and its agents negligently trained and supervised members of the NYPD as to the January 2020 amendment to CPL § 150.20. This failure inevitably resulted in NYPD officers continuing to make arrests for violations in the same manner as they would crimes, even though it was clear the legislature had the intent to bar such arrests.

55. The acts and conduct of Defendant were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

56. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

NINTH CLAIM FOR RELIEF
ABUSE OF PROCESS

57. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

58. By the conduct and actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, employed regularly issued process against Plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm Plaintiff without economic or social excuse or justification, and to seek a collateral advantage or corresponding detriment to Plaintiff, which was outside the legitimate ends of the process.

59. By the actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, engaged in extreme and outrageous conduct, which

intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

60. NYPD officers acted with extreme and outrageous conduct while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*

61. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

TENTH CLAIM FOR RELIEF
DENIAL OR DELAY OF MEDICAL CARE AND/OR MEDICATION

62. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

63. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, denied and/or delayed providing Plaintiff reasonable, good faith medical attention while he was in custody of NYPD members.

64. As a result, Plaintiff suffered serious injury or significant exacerbation of injury.

65. Defendant's conduct violated New York Civil Rights Law Section 28.

ELEVENTH CLAIM FOR RELIEF
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION

66. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

67. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving Plaintiff of his rights, privileges, and immunities secured by Article 1, §§ 8, 9, 11, and 12 of the New York State Constitution, including, without limitation, the following deprivations of rights, privileges, and immunities:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment and from being wrongfully detained without cause or legal justification, and of which Plaintiff was aware and did not consent;
- iv. freedom from deprivation of liberty without due process of law;
- v. freedom from deprivation of property without due process of law;
- vi. freedom from deprivation of liberty of speech; and
- vii. freedom from deprivation of the right to assemble.

68. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**TWELFTH CLAIM FOR RELIEF
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
*(Against the Individual Defendants)***

68. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

69. In committing the acts and omissions complained of herein, the Individual Defendants acted under color of state law to deprive Plaintiff of certain constitutionally protected rights under the First, Fourth, and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to free speech and assembly
- b. the right to be free from unreasonable search and seizure;
- c. the right to be free from arrest without probable cause;
- d. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention Plaintiff was aware and to which he did not consent;
- e. the right to be free from excessive force;
- f. freedom from malicious prosecution by police, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in plaintiff's favor;
- g. freedom of the enjoyment of equal protection, privileges and immunities under the laws; and
- h. defendants failed to intervene and stop the afore enumerated constitutional violations.

70. In committing the acts and omissions complained of herein, the individual defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

71. As a direct and proximate result of the individual defendants' deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

72. The unlawful conduct of the Individual Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

THIRTEENTH CLAIM
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL
VIOLATIONS – 42 U.S.C. § 1983 and *Monell v. Department of Social Services,*
436 U.S. 658 (1978)
(Against defendant the City of New York)

73. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

74. All of the wrongful acts or omissions complained of herein were carried out by the individual named and unnamed police officer defendants pursuant to: (a) formal policies, rules, and procedures of Defendant City; (b) actions and decisions by Defendant City's policymaking agents; (c) customs, practices, and usage of the City and NYPD that are so widespread and pervasive as to constitute *de facto* policies accepted, encouraged, condoned, ratified, sanctioned, and/or enforced by Defendant City; (d) Defendant City's deliberate indifference to Plaintiff's rights secured by the First, Fourth, and Fourteenth Amendments of the United States Constitution, as evidenced by the City's failures, and the failures of the City's policymaking agents, to train, supervise, and discipline NYPD officers including the Individual Defendants, and the City's failure to inform the Individual Defendants' supervisors of their need to train, screen, supervise or discipline the Individual Defendants, despite knowledge of NYPD officers' unlawful conduct and constitutional violations.

75. Defendant City's policies, *de facto* policies, procedures, practices, and customs, pursuant to which NYPD officers, including the Individual Defendants, effected, and otherwise participated in, subjecting Plaintiff to unlawful seizure, false arrest and imprisonment, excessive force, searches and/or seizures of Plaintiff's person and/or property, included, *inter alia*:

- a. seizure of protesters based on the perception that they were part of a perceived group, without having made an individualized determination that there was probable cause to arrest the individual protester based on the individual protester's conduct, as opposed to the perceived "group conduct", including the use of tactics

like “kettling,” “corralling,” or “encircling” protestors in order to effectuate mass arrests in violation of their constitutional rights;

- b. failing to give constitutionally meaningful and adequate dispersal orders and meaningful opportunities to disperse prior to making arrests where such notice and opportunity were required;
- c. using excessive force when effectuating arrest of peaceful protestors, including, *inter alia*, indiscriminately striking protestors and bystanders with batons, and indiscriminately pepper spraying protestors and bystanders, and the use of excessively tight zip-ties;
- d. enforcing content-based restrictions of First Amendment-protected speech as against protestors who express messages in support of the Black Lives Matter movement and against police brutality;
- e. retaliating against perceived participants in First Amendment assemblies by assaulting, detaining, and arresting them;
- f. using “kettling” to corral and trap perceived participants in First Amendment assemblies;
- g. deploying SRG officers, who are trained in serious disorder control and counterterrorism, as the primary response to large-scale First Amendment assemblies;
- h. deploying NYPD officers who are untrained in protest response to respond to First Amendment assemblies;
- i. using excessive force in response to First Amendment assemblies and in effecting the seizure of perceived participants of those assemblies including, *inter alia*:
 - i. indiscriminately striking peaceful protestors with batons, including baton strikes to the head;
 - ii. indiscriminately using pepper spray as a crowd control tactic;
 - iii. shoving bicycles and barricades into peaceful protestors;
 - iv. pushing and tackling peaceful protestors to the ground;
 - v. applying extreme pressure with the knees to the backs and legs of seized protestors who are not resisting arrest;
 - vi. kicking peaceful protestors, including kicking in the face;
 - vii. striking peaceful protestors with fists;
 - viii. using extremely tight flex-cuffs in effecting the arrest of protestors;
- j. treating perceived “groups” of people as a “unit” for “mass arrest” probable cause determination purposes and for crowd control purposes;

- k. using force against perceived “groups” without individualized determinations of reasonableness;
- l. maliciously prosecuting protestors by charging them with dubious violations of law that are later dismissed;
- m. enforcing curfew orders, P.L. § 240.20(5) (Disorderly Conduct – Blocking Pedestrian or Vehicular Traffic), P.L. § 240.20(6) (Disorderly Conduct – Failure to Obey Lawful Dispersal Order), and V.T.L. § 1156 OA (Pedestrians on Roadway) selectively as against perceived participants of First Amendment assemblies, and without first ensuring that constitutionally meaningful and adequate dispersal orders and reasonable opportunities to disperse are given and disregarded;
- n. assigning “arresting officers” who had not in fact arrested, or witnessed the arrest of, perceived participants of First Amendment assemblies to complete NYPD paperwork;
- o. not releasing protestors who are issued summonses upon issuance of the summons and instead transporting them to be processed, resulting in excessive time in custody;
- p. seizing property without vouchering and not returning property to protestors;
- q. failing to provide adequate medical attention, food, water, bathroom access, and COVID-19 safety masks to protestors in custody; and
- r. failing to adequately instruct, train, supervise, and discipline NYPD officers with respect to the above-listed matters.

76. The aforesaid deliberate or policies, *de facto* policies, procedures, regulations, practices and customs, including the failure to properly instruct, train, supervise, and discipline employees with regard to such matters, were implemented or tolerated by Defendant City, Defendant City’s policymaking officials, and their delegates, who knew:

- a. to a moral certainty that such policies, procedures, regulations, practices and customs concern issues that regularly arise in the deployment of NYPD officers to peaceful protests;
- b. that such issues present employees with difficult choices of the sort that instruction, training, supervision, and discipline will make correct choices less difficult and incentivize making correct choices;

- c. that the making of wrong choices by municipal employees concerning such issues will frequently cause the deprivation of the constitutional rights of protestors and cause them constitutional injury; and
- d. that employees of the NYPD had a long history of making wrong choices in such matters.

77. Defendant City and its policymaking officials had the knowledge and the notice alleged in the preceding paragraph, based upon numerous credible allegations related to the NYPD's response to First Amendment assemblies and protests, including allegations to the Civilian Complaint Review Board, New York State Office of the Attorney General, and other entities, and in numerous cases, including:

- a. *Kunstler v. City of New York*, 04 Civ. 1145 (RWS)(MHD) (S.D.N.Y. 2004) and other related cases arising from alleged false and retaliatory arrests in connection with police responses to protests on April 7, 2003, raising *Monell* and other claims similar and related to the policies and practices complained of herein such as encircling protesters, striking them with nightsticks, and using extremely tight plastic handcuffs in their arrest;
- b. *MacNamara v. City of New York*, 04 Civ. 9216 (RJS)(JCF) (S.D.N.Y.) (including the Second Amended Class Action Complaint, Dkt. No. 200-2), *Dinler v. City of New York*, 04 Civ. 7921 (RJS)(JCS), 2012 WL 4513352, at *13-15 (S.D.N.Y. Sept. 30, 2012) (granting plaintiffs' motions for summary judgment on their false arrest claims related to hundreds of people mass arrested at 2004 RNC in connection with a War Resisters League march and denying defendants' cross-motion on false arrest claims); *Schiller v. City of New York*, 04 Civ. 7922 (RJS) (JCF), 2008 WL 200021 at *2-5 (S.D.N.Y. Jan. 23, 2008) (noting the City's consent to amendment of complaints in RNC cases to add, inter alia, "constitutional challenges to the defendants' alleged practice of detaining . . . all persons in connection with the RNC . . . no matter how minor the infraction, rather than issuing summonses on the street"); and the dozens of other cases consolidated for discovery purposes in the S.D.N.Y. arising from arrests made, and policies related to, the RNC in New York City in 2004;
- c. *Peat v. City of New York*, No. 12 Civ. 08230 (S.D.N.Y.) (including allegations that plaintiffs were peacefully and lawfully protesting when executive members of the NYPD blocked their path on the sidewalk, encircled them on three sides and a building line on the fourth side. The NYPD made dispersal announcements without providing sufficient time or a path of egress as members of the scooter task force blocked the protesters path of egress);

- d. More than sixty civil rights actions filed in the S.D.N.Y. arising from NYPD OWS arrests and related policies, including, but not limited to, the cases listed in *Marisa Holmes v. City of New York, et al.*, 14 Civ. 5253 (LTS) (S.D.N.Y.) (Dkt. No. 13 ¶ 89) (listing by caption and docket numbers of many OWS-related cases as of March 13, 2015);
 - e. The incidents discussed in the research compiled by The Global Justice Clinic at the New York University School of Law and the Walter Leitner International Human Rights Clinic at the Leitner Center for International Law and Justice at Fordham Law School in their publication titled *Suppressing Protest: Human Rights Violations in the U.S. Response to Occupy Wall Street*, published July 25, 2015, available at <http://hrp.law.harvard.edu/wp-content/uploads/2013/06/suppressing-protest-2.pdf>.
78. Defendant City's policies, *de facto* policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth and Fourteenth Amendments.

FOURTEENTH CLAIM
VIOLATIONS OF N.Y.C. ADMINISTRATIVE CODE § 8-801, et. seq.

79. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

80. By the actions described above, Defendants violated Plaintiff's right to be secure in his person, papers and effects against unreasonable searches and seizures, and to be secure against the use of excessive force, in violation of N.Y.C. Administrative Code § 8-802, and Plaintiff seeks redress under N.Y.C. Admin Code §§ 8-801, 8-802, 8-803, *et seq.*

81. The Individual Defendants subjected Plaintiff or caused him to be subjected, including through failure to intervene, to the deprivations of rights described herein, including unreasonable search and seizure and excessive force, while acting under color of any law, ordinance, rule, regulation, custom or usage, and in the scope of their employment as employees

or agents of the City of New York. Defendant City of New York is therefore liable to Plaintiff under a theory of *respondeat superior*.

As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured. **WHEREFORE**, Plaintiff demands judgment against Defendant THE CITY OF NEW YORK and prays for relief as follows:

- a. that he be compensated for violation of his rights, pain, suffering, mental anguish and humiliation; and
- b. that he be awarded punitive damages; and
- c. that he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. for such other further and different relief as to the Court may deem just and proper.

Dated: November 3, 2023
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP



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